



U.S. Department
of Transportation

Pipeline and
Hazardous Materials
Safety Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

AUG 16 2005

DOT-E 14194
(FIRST REVISION)

EXPIRATION DATE: July 31, 2007

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Zippo Manufacturing Co.
Bradford, PA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of certain liquid-fueled metal cigarette lighters in checked baggage of passenger aircraft when packaged in a rigid, vapor-tight non-DOT specification solid plastic box that will prevent any movement of the lighter during transport.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
 - c. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein or relief from any other foreign or domestic regulation.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: Subchapter C of 49 CFR except that the Zippo manufactured lighters must be shipped in the non-DOT specification solid plastic box and marked as specified in the this exemption when transported in checked baggage by domestic passenger aircraft.

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5. BASIS: This exemption is based on the application of Zippo Manufacturing Co. dated May 9, 2005 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lighters, non-pressurized containing flammable liquid	3	NA1057	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a vapor-tight non-DOT specification solid plastic box which contains one (1) metal cigarette lighter, manufactured by Zippo Manufacturing Co., fueled with Packing Group II petroleum distillates (naphtha, Isopar-E, etc.). The design of the non-DOT specification solid plastic box must meet the following requirements:

(1) Each design must successfully pass the performance tests specified for a UN4H2 solid plastic box; and

(2) Each design must provide a vapor-tight seal against any loss of fuel and prevent any movement of the lighter during transport.

b. TESTING -

(1) Each design of the non-DOT specification solid plastic box must be tested to and withstand a partial vacuum of 28 inches of mercury for not less than 30 minutes at 100°F with no leakage of petroleum distillate vapors.

(2) Each design of the non-DOT specification solid plastic box must be periodically retested as specified for a UN4H2 solid plastic box.

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8. SPECIAL PROVISIONS:

a. Each outer packaging, as described in paragraph 7 above, may not contain more than one (1) lighter, manufactured by Zippo Manufacturing, Co. Each passenger may not carry more than two (2) outer packages in their checked luggage.

b. A person who is not a holder of this exemption and who intends to place a liquid-fueled metal cigarette lighter, manufactured by Zippo Manufacturing Co., contained within a non-DOT specification solid plastic box in checked baggage on a passenger aircraft may do so provided no modification or change is made to the package and it is offered for transportation in conformance with this exemption.

c. The non-DOT specification solid plastic box must be plainly and durably marked with letters and numbers at least 1/4" in height as follows: **"Lighter in this packaging conforms to DOT-E 14194 and may be transported in checked baggage by domestic passenger aircraft"**.

d. The shipping paper and marking requirements specified in 49 CFR Part 172 Subparts C and D are waived.

e. Purchasers of the non-DOT specification solid plastic box authorized by this exemption must be provided with instructions on the use and maintenance of the box.

9. MODES OF TRANSPORTATION AUTHORIZED: Passenger-carrying aircraft.

10. MODAL REQUIREMENTS: None.

11. COMPLIANCE: Failure by a person to comply with the terms of this exemption may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.:

Robert A. McGuire

607 Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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DATE

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590. Attention: PHH-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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